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|   |                                            | <p>evidence which substantiates that the plaintiff will meet the clear and convincing standard of proof under Section 3294 of the Civil Code.”</p> <p>(Code Civ. Proc. § 425.14).</p> <p>Plaintiff filed a notice of non-opposition, contending that Plaintiff does not oppose granting SCC’s motion to strike at this time. However, Plaintiff argues it has in the process of gathering declarations to obtain evidence sufficient to comply with section 425.14 and should be given the opportunity in the future to amend to allege compliance.</p> <p>Given Plaintiff’s non-opposition and, therefore, implied concession that the SAC, as currently pled, does not comply with section 425.14, the motion is GRANTED.</p> <p>The Case Management Conference is continued to December 03, 2026 at 09:00 am in Department C10.</p> <p>Moving Defendant to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 8 | Aimar vs. LA Roofing & Builder Group, Inc. | <p>The demurrer by Defendant Bumble Roofing of LA, LLC (“Bumble 110”) to the first through sixth causes of action by Plaintiffs David Aimar and Theresa Golden are <b>OVERRULED</b>.</p> <p><u>Legal Standard on Demurrer</u></p> <p>A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4<sup>th</sup> 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4<sup>th</sup> 399, 413.)</p> <p>On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4<sup>th</sup> 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4<sup>th</sup> 962, 966-67.)</p> <p>A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; <i>Doe v. City of Los</i></p> |